

Abdul Ajij v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 25 July 2019 · Writ-C No. 24092 of 2019 · **Further hearing on provisional assessment directed; coercive action stayed; Section 127 left open after final order.**

HEADNOTE

Where service of notice of a provisional electricity assessment is disputed, the High Court may, without deciding that controversy, grant the consumer a further opportunity to file objections before the assessing officer, direct a speaking final order, stay coercive recovery in the meantime, and leave any challenge to that final order to the statutory appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Abdul Ajij challenged before the Allahabad High Court an order dated 4 July 2019 of the Electricity Consumer Grievance Redressal Forum, Saharanpur. He alleged that the Executive Engineer was taking coercive recovery steps without a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the licensee stated that a notice issued with the provisional assessment required the petitioner to appear and object within fifteen days, and that he failed to do so; the petitioner denied receipt of that notice.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

provisional assessment — further hearing, final order and Section 127 appeal

HOLDING

Without deciding whether notice of the provisional assessment had been served, the Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within thirty days, stayed coercive action for two months or until disposal of the objection (whichever earlier), and left the consumer to an appeal under Section 127 of the Electricity Act, 2003 against that final order. Default in filing the objection would vacate the stay; non-appearance would permit an ex parte final order. ¶ 3

PRINCIPLE TAGS

s127-appeal-lies-only-against-final-order-not-provisional-assessment The Court did not relegate the consumer immediately to a Section 127 appeal while only a provisional assessment was in play; it first required the Executive Engineer to pass a speaking final order after hearing objections. ¶ 3

final-assessment-order-relegates-assessee-to-section-127-appeal Liberty was reserved to challenge the forthcoming final assessment order by appeal under Section 127 of the Electricity Act, 2003, rather than by a further writ on the merits of the assessment. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NOTICE OF THE PROVISIONAL ASSESSMENT WAS SERVED ON THE PETITIONER

The Court expressly declined to enter the service controversy. ¶ 3

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT AND OF THE CGRF ORDER DATED 4 JULY 2019

¶ 3

NOT DECIDED — WHETHER THE LICENSEE HAD COMPLIED WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

¶ 3

